

Moot Court Guidelines:

Overview

Throughout the semester, you will participate in two moot courts (simulated trials) based on historical cases we study. Each student will sign up for **two trials** and assume **two different roles** (presenter of facts, prosecution, defense, or final ruling/public response). Each presentation should last **8–10 minutes** and will count toward **35% of your final grade**.

Preparation Requirements

- Sign up for two court cases at the following [link](#).
- You must **meet with the instructors in advance** of your assigned trial date. Failure to do so will result in a lower grade.
- Presentations must draw from both **assigned course materials** and **outside research**, using a balance of **primary and secondary sources**.
- Students in the same trial role may **collaborate in preparation**, but each person is responsible for their **own argument and presentation**.
- A written version of your presentation (script, notes, or slides) must be submitted for review.
- **Use of AI is strictly prohibited.**

Roles & Responsibilities

1. Presenter of Facts

- Provide a clear, chronological **summary of the trial events**, including key figures, charges, evidence, and verdict.
- Situate the trial in its **historical context** (political climate, cultural dynamics, social tensions).
- Highlight controversies, ambiguities, or important points that will shape the arguments of prosecution/defense.

2. Prosecution

- Present the case **as if you are the state or accuser**, building an argument for why the defendant is guilty.
- Use **legal reasoning, historical evidence, and persuasive rhetoric**.
- Anticipate and refute possible counterarguments from the defense.

3. Defense

- Argue on behalf of the **accused**, presenting reasons why the charges should not stand.
- Use **primary sources** (testimony, trial records) and **secondary scholarship** to undermine the prosecution's claims.

- Highlight flaws in the evidence, bias, or larger social/political forces working against the accused.

4. Final Ruling & Public Response

- Explain the outcome of the trial proceedings and what factors led to the outcome.
- Analyze the **court of public opinion**: how did society at the time interpret the trial? How did it affect cultural or political debates?
- Consider what the trial reveals about **power, prejudice, and justice** in its historical moment.

Presentation Guidelines

- Time: **8–10 minutes** per student.
- Delivery: Clear, organized, and persuasive. Visual aids (slides, handouts) are encouraged but not required.
- Sources: Must cite both assigned readings and outside research (footnotes, endnotes, or a bibliography).
- Tone: Formal and analytical, but you may adopt the rhetorical style of your role (e.g., fiery prosecution, sober fact-presenter).

Class Participation

- Students not presenting are expected to participate in the **Q + A session** following each moot court.
- Come prepared with **at least one question** for the presenters.

Evaluation Criteria

- **Preparation & Meeting Requirement** – Did you meet with instructors? Are you well-prepared?
- **Use of Sources** – Did you effectively use assigned materials and outside research?
- **Clarity & Organization** – Was your presentation structured and easy to follow?
- **Argumentation & Evidence** – Did you present a compelling, well-supported case?
- **Engagement & Delivery** – Was your presentation persuasive and within the 8–10 minute window?